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Reserve Bank of India (Non-Banking Financial Companies - Account Aggregator) Directions, 2025

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In exercise of the powers conferred under section 45JA of the Reserve Bank of India Act, 1934 (hereinafter referred to 'the Act'), and of all the powers enabling it in this behalf, the Reserve Bank hereby issues Reserve Bank of India (Non-Banking Financial Companies - Account Aggregator) Directions, 2025 for compliance of the same by every non-banking financial company undertaking the business of Account Aggregator as defined herein.

Chapter-I – Preliminary

A. Short title and Commencement and Applicability:

1. These directions shall be known as the 'Reserve Bank of India (Non-Banking Financial Companies - Account Aggregator) Directions, 2025.

2. These directions shall come into force with effect on the day they are placed on the website of the Reserve Bank.

B. Applicability

3. These Directions shall be applicable to Non-Banking Financial Companies – Account Aggregators (hereinafter collectively referred to as 'NBFC-AAs' and individually as an 'NBFC-AA').

C. Applicability of other directions

4. The provisions contained in the following directions, where not contradictory to the contents of these Directions, shall be applicable to an NBFC-AA:

(1) Reserve Bank of India (Non-Banking Financial Companies - Registration, Exemptions and Framework for Scale Based Regulation) Directions, 2025.

(2) Paragraphs 8, 10 to 13, 17(1) and 18 of Reserve Bank of India (Non-Banking Financial Companies - Governance) Directions, 2025. It may be noted that the provisions of paragraphs 12, 13, 17(1) and 18 shall be applicable to NBFC-AA, despite the categorization of NBFC-AA as NBFCs-BL under SBR Framework.

(3) Reserve Bank of India (Non-Banking Financial Companies – Financial Statements: Presentation and Disclosures) Directions, 2025 except provisions contained in paragraphs 13 to 15 and paragraph 20.

(4) Reserve Bank of India (Non-Banking Financial Companies– Acquisition of Shareholding or Control) Directions, 2025 except paragraphs 6(3) and 6(4).

(5) Reserve Bank of India (Non-Banking Financial Companies – Prudential Norms on Declaration of Dividends) Directions, 2025.

(6) Reserve Bank of India (Non-Banking Financial Companies – Managing Risks in Outsourcing) Directions, 2025.

(7) Reserve Bank of India (Non-Banking Financial Companies- Voluntary Amalgamation) Directions, 2025.

(8) Paragraphs 6, 7, 25 and 26 of the Reserve Bank of India (Non-Banking Financial Companies – Miscellaneous) Directions, 2025.

5. Notwithstanding the above, the instructions contained in these Directions shall be applicable to an NBFC-AA in addition and not in substitution to the other relevant instructions contained in the directions mentioned in paragraph 4 above.

D. Regulatory Structure under Scale Based Regulation for NBFCs

6. NBFC-AA shall always remain in the Base Layer of the regulatory structure specified in Reserve Bank of India (Non-Banking Financial Companies – Registration, Exemptions and Framework for Scale Based Regulation) Directions, 2025.

E. Scope

7. The provisions of the directions provide a framework for the registration and operation of a non-banking financial company undertaking the business of an Account Aggregator in India.

F. Definitions

8. In these directions unless the context otherwise requires,

(1) 'Account Aggregator' means a non-banking financial company as notified under in sub-clause (iii) of clause (f) of section 45-I of the Act, that undertakes the business of an account aggregator, for a fee or otherwise, as defined at paragraph 8(4) of these directions.

(2) ‘bank’ means -

a) a banking company; or

b) a corresponding new bank; or

c) the State Bank of India; or

d) a subsidiary bank; or

e) such other bank which the Reserve Bank may, by notification, specify for the purposes of these directions; and

f) a co-operative bank as defined under clause (cci) of section 5 read with section 56 of the Banking Regulation Act, 1949 (10 of 1949);

(3) ‘Banking company’ means a banking company as defined in clause (c) of section 5 of the Banking Regulation Act, 1949 (10 of 1949);

(4) ‘business of an account aggregator’ means the business of providing under a contract, the service of, retrieving or collecting such financial information pertaining to its customer, as may be specified by the Reserve Bank from time to time;

and

consolidating, organizing and presenting such information to the customer or any other financial information user as may be specified by the Reserve Bank;

Provided that*, the financial information pertaining to the customer shall not be the property of the Account Aggregator, and not be used in any other manner.*

(5) ‘Company’ means a company registered under section 3 of the Companies Act, 1956 or a company registered under sub section (20) of section 2 of the Companies Act, 2013;

(6) ‘Customer’ for the purpose of these directions means a ‘person’ who has entered into a contractual arrangement with the Account Aggregator to avail services provided by the Account Aggregator;

(7) ‘Depository’ means a company which has been granted a certificate of registration under sub-section (1A) of section 12 of the Securities and Exchange Board of India Act, 1992;

(8) ‘Depository Participant’ means a person registered under sub-section (1A) of section 12 of the Securities and Exchange Board of India Act, 1992;

(9) ‘Financial Information’ means information in respect of the following with financial information providers:

(i) bank deposits including fixed deposit accounts, savings deposit accounts, recurring deposit accounts and current deposit accounts,

(ii) Deposits with NBFCs

(iii) Structured Investment Product (SIP)

(iv) Commercial Paper (CP)

(v) Certificates of Deposit (CD)

(vi) Government Securities (Tradable)

(vii) Equity Shares

(viii) Bonds

(ix) Debentures

(x) Mutual Fund Units

(xi) Exchange Traded Funds

(xii) Indian Depository Receipts

(xiii) CIS (Collective Investment Schemes) units

(xiv) Alternate Investment Funds (AIF) units

(xv) Insurance Policies

(xvi) Balances under the National Pension System (NPS)

(xvii) Units of Infrastructure Investment Trusts

(xviii) Units of Real Estate Investment Trusts

(xix) Goods and Services Tax (GST) Returns, viz. Form GSTR-1 and Form GSTR-3B

(xx) Any other information as may be specified by the Reserve Bank for the purposes of these directions, from time to time;

(10) 'Financial Sector Regulator' for the purpose of these directions, shall mean the Reserve Bank of India, Securities and Exchange Board of India, Insurance Regulatory and Development Authority of India, Pension Fund Regulatory and Development Authority and Department of Revenue, Ministry of Finance;

(11) 'Financial Information Provider' means bank, banking company, non-banking financial company, asset management company, depository, depository participant, insurance company, insurance repository, Central Recordkeeping Agency, Goods and Services Tax Network (GSTN), Clearing Corporation of India Limited and such other entity as may be identified by the Reserve Bank for the purposes of these directions, from time to time;

Note: Clearing Corporation of India Limited shall provide financial information on Government Securities held by retail investors in their Retail Direct Gilt accounts under Retail Direct Scheme.

(12) 'Financial Information User' means an entity registered with and regulated by any financial sector regulator;

(13) 'Insurance Repository' means a company formed under the Companies Act, 1956 and which has been granted a certificate of registration by Insurance Regulatory and Development Authority of India (IRDAI) for

maintaining data of insurance policies in electronic form on behalf of insurers.

(14) 'Leverage Ratio' means the ratio of the Outside Liabilities excluding borrowings/ loans from the group entities to Owned Funds.

(15) 'Non-banking financial company' means a company registered under the Companies Act and which has been granted certificate of registration by the Reserve Bank under section 45IA of the Act;

(16) 'Person' means

(i) an individual,

(ii) a Hindu undivided family,

(iii) a company,

(iv) a firm,

(v) an association of persons or a body of individuals, whether incorporated or not, and

(vi) every artificial juridical person, not falling within any of the preceding subclauses.

9. Words or expressions used in these directions but not defined herein but defined in the Act, shall have the same meaning as assigned to them under the Act. Any other words or expressions not defined in the Act, shall have the same meaning assigned to them in the Companies Act, 2013.

Chapter-II – Role of Board of Directors and Registration

A. Role of Board of Directors

10. The NBFC-AA shall put in place Board approved policies and establish periodic review mechanisms to ensure sound processes and systems. An illustrative list of such policies to be approved by the Board or its Committee(s) is provided below. The specific aspects to be addressed in these policies are detailed in the relevant paragraphs of these Directions.

(1) Policy for handling / disposal of customer grievances / complaints.

(2) Pricing of Services.

(3) Policy for ascertaining the fit and proper criteria of the directors / managing director/ CEO at the time of appointment, and on a continuing basis.

B. Registration

11. The registration requirements for an NBFC-AA shall be as under:

(1) No entity other than a company shall undertake the business of an Account Aggregator.

(2) No company shall commence or carry on the business of an Account Aggregator without obtaining a certificate of registration from the Reserve Bank.

Provided that, entities being regulated by other financial sector regulators and aggregating only those accounts relating to the financial information pertaining to customers of that particular sector will be excluded from the above registration requirement.

(3) Every company seeking registration with the Reserve Bank as an NBFC-AA shall have a net owned fund of not less than rupees two crore, or such higher amount as the Reserve Bank may specify.

Provided that, those companies not having a Net Owned Fund of minimum of Rupees two crore at the time of seeking registration, shall meet the Net